

CLIENT PAPER – FOR NEGOTIATION

Master Software Development Services Agreement

by and between

OrionPay Financial Technologies, Inc.

("Client")

and

Ruth

("Vendor" or "Ruth")

Effective Date: **July 2026**

Project: *OrionPay Merchant Payments Platform & Fraud-Scoring Model*

This document is an initial draft prepared by OrionPay Financial Technologies, Inc.
for the purpose of commercial negotiation. It does not constitute an offer capable

of acceptance and is subject to revision by both parties. Privileged and confidential.

1. Parties and Recitals

This Master Software Development Services Agreement (this “**Agreement**”) is entered into as of the date of last signature below (the “**Effective Date**”), by and between **OrionPay Financial Technologies, Inc.**, a corporation duly organized under applicable law, together with its subsidiaries and affiliates (“**Client**” or “**OrionPay**”), and **Ruth**, a software development company with approximately 150 employees specializing in full-stack engineering and applied machine learning / AI development services (“**Vendor**” or “**Ruth**”). Client and Vendor are each a “**Party**” and together the “**Parties**.”

Recitals

- (a) Client operates a merchant payment processing business and wishes to engage Vendor to design, build, and deliver a merchant-facing payments platform, together with a fraud-scoring model trained and tuned on Client transaction data (the “**Project**”).
- (b) Vendor represents that it possesses the personnel, expertise, and capacity to deliver the Project to a standard suitable for a regulated financial services environment, and that it has evaluated the scope described in this Agreement and the Initial SOW and confirms such scope is achievable within the timeline and fees set out herein.
- (c) Given the financial and regulatory sensitivity of the Project, Client requires enhanced protections regarding intellectual property ownership, data handling, warranty, liability, and personnel commitments beyond what Vendor may consider its standard terms, and Vendor’s willingness to accept such terms was a material inducement to Client’s decision to engage Vendor rather than an alternative provider.
- (d) The Parties intend this Agreement to govern the Project on a fixed-price basis for the core platform and a fixed-fee, milestone-gated basis for the fraud-scoring model component, over an anticipated duration of six (6) months from the Effective Date, as further detailed in the Initial SOW.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows.

2. Scope of Services and Deliverables

2.1 Overview

Vendor shall design, develop, test, deliver, and support the OrionPay Merchant Payments Platform and the associated fraud-scoring model, as set out in **Exhibit A** (the “**Initial SOW**”), together with any subsequent Statements of Work (collectively, the “**Services**”), comprising: (i) a merchant onboarding and dashboard web application; (ii) a payment processing and settlement integration layer; (iii) a transaction fraud-scoring model trained and fine-tuned on Client transaction data; (iv) reconciliation and reporting tooling; and (v) all associated documentation, infrastructure-as-code, and model documentation.

2.2 Deliverables

“**Deliverables**” means all software, source code, configuration, infrastructure code, trained model artifacts and weights, documentation, and other work product identified in the Initial SOW or produced by Vendor personnel in the course of performing the Services, whether or not specifically identified as a deliverable, and whether created solely or jointly with Client personnel or third parties (collectively, “**Work Product**”). Client’s acceptance rights under Section 10 apply to all Deliverables regardless of whether they are formally itemized in an SOW.

2.3 Standard of Performance

Vendor shall perform the Services to the highest standard of care applicable to providers of similar services to the financial services industry, and in all cases no less than the standard of a leading specialist provider of payments and fraud-detection software. Vendor acknowledges that Client is relying on Vendor’s representation of its capability and experience in accepting this engagement, and that any material shortfall from this standard shall constitute a material breach of this Agreement, without need for a cure period, if such shortfall is not remedied within ten (10) days of written notice.

2.4 Fraud Model Performance Commitment

- (a) Vendor guarantees that the fraud-scoring model, at Final Acceptance, will achieve a false-positive rate of no greater than two percent (2%) and a fraud-detection recall of no less than ninety-two percent (92%), measured against the validation dataset specified in the Initial SOW (the “**Performance Guarantee**”).
- (b) If the fraud-scoring model fails to meet the Performance Guarantee at the scheduled Final Acceptance date, Vendor shall, at its own cost and without any right to additional fees or Milestone extension, continue remediation work until the Performance Guarantee is met, and no Milestone payment associated with the fraud-scoring model shall become due or payable until the Performance Guarantee is satisfied and confirmed in writing by Client.
- (c) If the fraud-scoring model fails to meet the Performance Guarantee within sixty (60) days following the originally scheduled Final Acceptance date, Client may, at its sole election: (i) continue to require remediation under Section 2.4(b); (ii) reduce the fees payable for the fraud-scoring model component by an amount equal to \$2,000 for each full percentage point by which the achieved recall falls below 92% or the achieved false-positive rate exceeds 2%, in addition to any other remedy available to Client; or (iii) terminate the fraud-scoring model component of the Initial SOW for cause under Section 9.3 and recover fees paid for that component in full.

2.5 Project Team

Vendor shall assign a project team, including a Project Manager and a Fraud/ML Lead, sufficient to meet the Milestone schedule in Exhibit A, and shall provide Client with a weekly written status report and make its Project Manager available for a weekly status call at Client’s request.

2.6 Client Responsibilities

Client shall provide reasonable access to information, environments, and personnel, and training data for the fraud-scoring model, as reasonably required for Vendor to perform the Services. Client’s provision of such items shall not be construed to relieve Vendor of any obligation under Section 2.3 or 2.4.

3. Statements of Work and Change Control

3.1 Statements of Work

The Initial SOW is attached as Exhibit A. Additional SOWs may be executed from time to time and shall be incorporated into this Agreement upon execution. This Agreement shall govern in the event of conflict with an SOW, unless the SOW expressly and specifically varies a named provision of this Agreement.

3.2 Change Requests

Either Party may submit a written Change Request. Vendor shall respond in writing within five (5) business days identifying any proposed impact on scope, schedule, and fees. Client shall have no obligation to approve any fee increase proposed by Vendor in connection with a Change Request, and Vendor shall bear the burden of demonstrating, with itemized supporting detail, that any proposed increase is directly and solely attributable to the change in scope requested and does not reflect any element of Vendor’s original scope obligations, prior underestimation, or the Performance Guarantee under Section 2.4.

3.3 No Implied Change Orders

No course of dealing, delay in objection, or continued performance by Vendor following a Client-requested change shall be construed as a waiver of the requirement for a signed Change Order, and Vendor shall not be entitled to compensation for any work performed outside the then-current SOW in the absence of a signed Change Order, regardless of whether such work was performed at the request, direction, or with the knowledge of any Client personnel below the level of Client’s designated Project Lead.

4. Fees, Payment Terms and Invoicing

4.1 Fee Structure

Client shall pay Vendor a total fixed fee of **USD \$340,000** for the Services described in the Initial SOW (the “**Project Fee**”), payable solely upon Client’s written acceptance of the corresponding Milestone under Section 10, in accordance with the Milestone schedule set out in Exhibit A. No fee shall be deemed earned, invoiced, or payable until the associated Milestone has been accepted in writing by Client.

4.2 Holdback

Notwithstanding the Milestone schedule in Exhibit A, Client shall withhold fifteen percent (15%) of each Milestone payment (the “**Holdback**”), which shall accrue and become payable only upon Final Acceptance of the entire Project under Section 10.4, less any amounts properly deducted by Client under Section 2.4(c), Section 7, or Section 8.

4.3 Payment Terms

Client shall pay each undisputed, properly invoiced amount within **sixty (60) days** of the invoice date. Client may withhold payment of any invoice, in whole or in part, that it disputes in good faith by providing written notice within thirty (30) days of receipt, and no interest, penalty, or suspension right shall accrue against Client with respect to any amount under good-faith dispute for so long as such dispute remains unresolved. Vendor shall have no right to suspend or slow performance of the Services on account of any payment dispute or delay, regardless of duration, except upon a final, non-appealable determination that undisputed amounts exceeding \$75,000 remain unpaid more than one hundred twenty (120) days after the original due date.

4.4 Set-Off

Client may set off against any amount payable to Vendor under this Agreement any amount owed by Vendor to Client under this Agreement or otherwise, including amounts arising from indemnification claims, warranty remediation costs, service credits, or the fee reductions described in Section 2.4(c), whether or not such amount has been finally determined or agreed, provided Client acts reasonably and in good faith and promptly notifies Vendor in writing of the basis and amount of any such set-off.

4.5 Taxes

The Project Fee is exclusive of applicable sales, use, or VAT taxes, which shall be separately identified and borne by Client, excluding taxes on Vendor’s net income. Vendor bears its own expenses unless pre-approved in writing by Client.

5. Intellectual Property

5.1 Broad Assignment of Work Product

Vendor hereby irrevocably assigns, and shall cause its personnel and subcontractors to assign, to Client, effective automatically upon creation and without further consideration beyond the Project Fee, all right, title, and interest, including all worldwide intellectual property rights, in and to: (i) all Work Product; (ii) all inventions, discoveries, improvements, methods, processes, and know-how conceived, reduced to practice, or developed by Vendor personnel in the course of performing the Services, whether or not incorporated into a Deliverable, and whether developed solely or jointly with any third party (“**Project Inventions**”); and (iii) all data, model weights, training pipelines, evaluation frameworks, and derivative works thereof created in connection with the fraud-scoring model. Vendor shall promptly disclose all Project Inventions to Client and shall execute all documents reasonably requested by Client to perfect Client’s ownership, at Vendor’s expense.

5.2 Pre-Existing and Background IP

To the extent any Vendor-owned software, tools, libraries, frameworks, or other materials existing prior to this Agreement (“**Background IP**”) are incorporated into, combined with, or required for the use of any Deliverable, Vendor hereby assigns to Client all right, title, and interest in and to such Background

IP as so incorporated or combined, together with any modifications, adaptations, or derivative works of such Background IP created in the course of the Services. Vendor shall identify in writing, prior to first use, any Background IP it does not intend to assign under this Section 5.2, and any Background IP not so identified in writing prior to incorporation shall be deemed assigned to Client without further action. For any identified Background IP that Vendor does not assign, Vendor grants Client a perpetual, irrevocable, worldwide, royalty-free, transferable, sublicensable license to use, modify, and create derivative works of such Background IP for any purpose related to Client's business, and not solely in connection with the Deliverables.

5.3 Future Improvements

For a period of twenty-four (24) months following Final Acceptance, any improvement, modification, or derivative work created by Vendor to any Deliverable, Background IP incorporated into a Deliverable, or Project Invention, whether developed in connection with this Agreement or independently, that relates to fraud scoring, payments processing, or merchant onboarding functionality substantially similar to that developed under this Agreement, shall be offered to Client in writing prior to any use, license, or disclosure to a third party, and Client shall have thirty (30) days to elect to acquire ownership of such improvement for no additional consideration beyond the Project Fee already paid. If Client does not so elect, Vendor may exploit such improvement, provided it does not use, disclose, or incorporate any Client Data, Client Confidential Information, or the specific trained model weights delivered to Client under this Agreement.

5.4 Model Ownership

Client shall own all right, title, and interest in and to the fraud-scoring model, including all training data derivatives, model weights, checkpoints, hyperparameter configurations, and evaluation artifacts, in each case whether or not Final Acceptance has occurred, effective upon creation. Vendor shall deliver all such artifacts to Client, in a form usable without further assistance from Vendor, upon Client's request at any time during the Term.

5.5 Warranty of Title

Vendor represents and warrants that it has full right and authority to make the assignments in this Section 5, and that no third party, including any current or former Vendor employee, contractor, or subcontractor, has or will have any claim of ownership in the Work Product, Project Inventions, or Background IP as assigned or licensed to Client hereunder.

6. Confidentiality and Data Protection

6.1 Confidential Information

“**Confidential Information**” means all non-public information disclosed by either Party, including, as to Client, all Client Materials, transaction data, merchant and cardholder-adjacent data, and any information relating to Client's regulatory status, financial condition, or business strategy. Confidential Information excludes information that is or becomes public through no fault of the Receiving Party, was rightfully known prior to disclosure, is rightfully received from a third party, or is independently developed without reference to the Disclosing Party's Confidential Information.

6.2 Obligations

The Receiving Party shall use Confidential Information solely to perform its obligations under this Agreement, protect it with no less than a reasonable degree of care, and not disclose it to third parties except to personnel and subcontractors bound by confidentiality obligations at least as protective as this Section 6.

6.3 Enhanced Data Handling

Given the financial and payments-related nature of the data involved, Vendor shall: (i) implement administrative, technical, and physical safeguards consistent with recognized industry frameworks applicable to payment card and financial data, including network segmentation, encryption at rest and in transit, and role-based access controls; (ii) not process or store any Client transaction data outside the geographic regions and environments approved in writing by Client; (iii) ensure all personnel with access to Client transaction

data have undergone background screening consistent with Client's then-current vendor security policy, to be provided to Vendor at kickoff; and (iv) permit no caching, retention, or export of Client transaction data to any Vendor-owned or third-party environment not expressly approved in writing by Client.

6.4 Security Incident Notification

Vendor shall notify Client within twelve (12) hours of becoming aware of any confirmed or reasonably suspected unauthorized access, use, or disclosure of Client Confidential Information (a "**Security Incident**"), and shall bear all reasonable costs incurred by Client in investigating, remediating, and providing any legally required notifications arising from a Security Incident caused by Vendor's acts or omissions, without regard to the liability caps in Section 8.

6.5 Audit Rights

Client may, upon five (5) business days' written notice, audit Vendor's systems, facilities, and records relevant to the Services and the handling of Client Confidential Information, no more than twice per twelve-month period absent a suspected Security Incident, in which case Client's audit rights shall be exercisable without advance notice or frequency limitation. Vendor shall provide Client's auditors and regulators with such access and cooperation as Client reasonably requests, at Vendor's cost.

6.6 Survival

The obligations in this Section 6 shall survive for seven (7) years following termination or expiration of this Agreement, or indefinitely with respect to information that remains a trade secret.

7. Warranties

7.1 Mutual Warranties

Each Party warrants it has authority to enter into this Agreement and will comply with applicable law in its performance.

7.2 Vendor Warranties

Vendor represents and warrants that: (i) the Services shall be performed in a professional, workmanlike manner and to the standard described in Section 2.3; (ii) the Deliverables shall conform in all material respects to the specifications in the applicable SOW for a period of **twelve (12) months** following Final Acceptance; (iii) the fraud-scoring model shall continue to meet the Performance Guarantee under Section 2.4 for the same twelve (12)-month period, subject only to degradation directly and solely caused by a fundamental change in the nature of Client's transaction volume or fraud patterns exceeding the parameters disclosed in the Initial SOW; (iv) the Deliverables are free from material defects in design and workmanship and free of any virus, malware, backdoor, or other malicious code; (v) the Deliverables, and Vendor's provision of the Services, do not and will not infringe, misappropriate, or violate any third party's intellectual property, contractual, or other rights; and (vi) Vendor has not incorporated, and will not incorporate, any code, tool, or material into the Deliverables that would restrict Client's use, modification, or distribution of the Deliverables.

7.3 Remedy

Upon any breach of the warranties in Section 7.2, Vendor shall, at Client's election and at no cost to Client: (i) promptly correct the non-conformity; (ii) re-perform the affected Services; or (iii) refund the fees paid for the affected Deliverable. The remedies in this Section 7.3 are in addition to, and not in lieu of, any other right or remedy available to Client under this Agreement, at law, or in equity, including under Section 8.

7.4 No Disclaimer of Implied Warranties

Vendor's warranties under this Section 7 are in addition to, and do not limit, any warranty implied by applicable law, including any implied warranty of merchantability or fitness for a particular purpose, each of which is expressly preserved for Client's benefit to the maximum extent permitted by law.

8. Limitation of Liability and Indemnification

8.1 Vendor Liability Cap

Vendor's aggregate liability arising out of or related to this Agreement shall not exceed an amount equal to **five (5) times** the total fees paid or payable under the applicable SOW; provided that this cap shall not apply, and Vendor's liability shall be uncapped, with respect to: (i) Vendor's indemnification obligations under Sections 8.3 and 8.4; (ii) any breach of Section 6 (Confidentiality and Data Protection); (iii) any breach of Section 5 (Intellectual Property); (iv) Vendor's gross negligence, willful misconduct, or fraud; (v) any failure to meet the Performance Guarantee under Section 2.4; and (vi) any claim arising from Vendor's noncompliance with applicable payment card industry or financial services regulatory requirements disclosed to Vendor under this Agreement.

8.2 Client Liability Cap

Client's aggregate liability arising out of or related to this Agreement shall not exceed the total fees paid by Client under the applicable SOW as of the date the claim arises, except for Client's payment obligations for undisputed amounts properly due and Client's indemnification obligations under Section 8.5, which shall remain uncapped.

8.3 IP Indemnification by Vendor

Vendor shall defend, indemnify, and hold harmless Client, its affiliates, officers, directors, employees, and customers from and against any and all claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to any allegation that a Deliverable, or Client's use thereof in accordance with this Agreement, infringes, misappropriates, or violates any third party's intellectual property rights. Vendor's indemnification obligation under this Section 8.3 shall apply regardless of whether Client provides notice, tenders defense, or affords Vendor an opportunity to control the defense, provided that Client acts reasonably; Client may, at its option, control its own defense using counsel of its choosing at Vendor's expense. If a Deliverable is held or reasonably believed by Client to infringe, Vendor shall, at Client's election and Vendor's expense, promptly procure the right for Client to continue use, or replace or modify the Deliverable to be non-infringing while preserving full functionality, and shall in all events reimburse Client in full for fees paid for the affected Deliverable if Client elects to discontinue use.

8.4 General Indemnification by Vendor

Vendor shall further defend, indemnify, and hold harmless Client from and against any claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees and regulatory fines or penalties) arising out of or relating to: (i) any breach by Vendor of this Agreement, including Sections 2.3, 2.4, 5, 6, or 7; (ii) any act or omission of Vendor or its personnel or subcontractors in the performance of the Services; (iii) any Security Incident; and (iv) any claim by a third party, including a Vendor employee, contractor, or subcontractor, relating to the assignments described in Section 5.

8.5 Indemnification by Client

Client shall defend, indemnify, and hold harmless Vendor from and against third-party claims arising solely and directly from Client Materials provided by Client to Vendor without modification, to the extent such Client Materials, as provided, infringe a third party's intellectual property rights.

8.6 No Exclusion of Consequential Damages for Vendor Breach

Notwithstanding anything to the contrary, the exclusion of indirect, incidental, consequential, special, or punitive damages, if any, applicable under this Agreement shall apply only to claims brought by Vendor against Client, and shall not limit Client's right to recover any category of damages, including lost profits, loss of business, or reputational harm, arising from Vendor's breach of this Agreement.

9. Term and Termination

9.1 Term

This Agreement commences on the Effective Date and continues until completion of all Services under all SOWs, unless earlier terminated under this Section 9.

9.2 Termination for Convenience by Client

Client may terminate this Agreement or any SOW for convenience at any time upon fifteen (15) days' written notice. Upon such termination, Client shall pay Vendor solely for Milestones actually accepted in writing by Client prior to the effective date of termination, less any Holdback, set-off, or other deduction to which Client is entitled under this Agreement. Vendor shall have no claim to fees for any Milestone in progress but not yet accepted, or for anticipated profit on unperformed Services.

9.3 Termination for Cause

Client may terminate this Agreement or any SOW immediately upon written notice if Vendor: (i) materially breaches this Agreement and fails to cure within ten (10) days of written notice (or immediately, without a cure opportunity, for a breach of Section 2.3, 5, or 6); (ii) fails to meet the Performance Guarantee within the period specified in Section 2.4(c); (iii) experiences a Security Incident resulting from its own negligence; or (iv) becomes insolvent or subject to bankruptcy proceedings. Vendor may terminate this Agreement for Client's uncured material breach only after providing sixty (60) days' written notice and a sixty (60) day cure period, and only with respect to Client's payment obligations for undisputed amounts.

9.4 Effect of Termination

Upon any termination, Vendor shall, within five (5) business days and at no additional cost, deliver to Client all Work Product, Project Inventions, model artifacts, and Client Confidential Information in the form then existing, including source code and infrastructure configuration sufficient for Client to operate the Deliverables without further assistance from Vendor. Sections 4 (as to amounts owed to Client), 5, 6, 7, 8, 9.4, 11, and 14 shall survive termination.

9.5 Transition Assistance

Upon any termination, Vendor shall provide up to sixty (60) days of transition assistance to Client or a successor vendor at no cost to Client, including full knowledge transfer, source code walkthroughs, and model retraining documentation.

10. Acceptance

10.1 Milestone Review

Upon completion of each Milestone, Vendor shall deliver a Delivery Notice. Client shall have twenty (20) business days to review the Deliverable and either accept it in writing or reject it with a written list of non-conformities. There shall be no deemed acceptance under any circumstance; a Milestone is accepted only upon Client's affirmative written acceptance.

10.2 Cure and Re-Submission

If Client rejects a Milestone, Vendor shall correct all identified non-conformities within ten (10) business days at no additional cost, and resubmit for a further twenty (20) business day Review Period. This cycle shall repeat, at no additional cost to Client and without extension of any other Milestone's fee, until Client accepts the Milestone in writing. Repeated rejection of the same Milestone on three (3) or more occasions shall entitle Client, at its option, to terminate the applicable SOW for cause under Section 9.3 and recover all fees paid for that Milestone and any dependent Milestone.

10.3 Acceptance Testing

Client shall have sole discretion to determine whether a Deliverable, including the fraud-scoring model, conforms to the applicable specification and Performance Guarantee, acting reasonably and in good faith based on the test criteria set out in the Initial SOW.

10.4 Final Acceptance

“**Final Acceptance**” means Client’s written acceptance of the final Milestone under the Initial SOW, including confirmation that the fraud-scoring model satisfies the Performance Guarantee.

11. Key Personnel, Non-Solicitation and Non-Compete

11.1 Key Personnel

The Project Manager and Fraud/ML Lead, and any other individual designated as Key Personnel in the Initial SOW, shall not be removed or reassigned from the Project without Client’s prior written consent, which Client may withhold in its sole discretion, except in the case of resignation or termination of employment, in which case Vendor shall propose a replacement of substantially equivalent seniority and experience, subject to Client’s approval, within five (5) business days, at no additional cost to Client and with a minimum ten (10) business day paid overlap/knowledge-transfer period.

11.2 Non-Solicitation

During the Term and for a period of twenty-four (24) months thereafter, Vendor shall not, directly or indirectly, solicit for employment or engagement, or hire, any employee or contractor of Client, whether or not such individual was involved in the Project. During the same period, Client shall not solicit for employment any Vendor employee who was directly staffed on the Project, provided that this restriction on Client shall not apply to responses to general job postings.

11.3 Non-Compete

During the Term and for a period of eighteen (18) months following Final Acceptance or earlier termination of this Agreement, Vendor shall not, without Client’s prior written consent, directly or indirectly develop, license, or provide to any third party a fraud-scoring or transaction-risk-scoring software product or service that is competitive with the fraud-scoring model developed under this Agreement, where such product or service is developed using, derived from, or informed by Client Data, Client Confidential Information, or the specific model architecture, weights, feature set, or training methodology developed for Client under this Agreement. For clarity, this Section 11.3 does not restrict Vendor from providing general software development, full-stack engineering, or machine learning consulting services to other clients, including clients in the payments or financial services industry, provided Vendor does not use or disclose Client Data, Client Confidential Information, or the specific Deliverables developed for Client in doing so.

12. Open Source and Third-Party Components

12.1 Approval Requirement

Vendor shall not incorporate any open-source or third-party software component into any Deliverable without Client’s prior written approval, which Client may grant, condition, or withhold in its discretion. Vendor shall provide Client, prior to first use, a complete bill of materials identifying each proposed component, its version, its license terms, and a description of how it will be used.

12.2 Prohibited Licenses

Vendor shall not incorporate any component licensed under a Copyleft License (including the GPL, LGPL, AGPL, or any license with similar reciprocal or disclosure obligations) into any Deliverable under any circumstance, without exception.

12.3 Ongoing Compliance

Vendor shall monitor and promptly notify Client of any known vulnerability, license change, or deprecation affecting any third-party component incorporated into a Deliverable, and shall remediate any such issue at its own cost within a commercially reasonable time, and in any event within thirty (30) days of becoming aware of a critical or high-severity vulnerability.

13. Insurance and Audit Rights

13.1 Insurance

Vendor shall maintain, at its own expense, throughout the Term and for twenty-four (24) months thereafter: (i) commercial general liability insurance of not less than USD \$5,000,000 per occurrence; (ii) professional liability (errors and omissions) insurance of not less than USD \$5,000,000 per claim; (iii) cyber liability insurance of not less than USD \$5,000,000 per claim, covering data breach response, regulatory fines to the extent insurable, and business interruption; and (iv) crime/fidelity insurance of not less than USD \$2,000,000 covering theft or fraud by Vendor personnel. Client shall be named as an additional insured on each policy (other than professional liability), and Vendor shall provide certificates of insurance upon request and at least thirty (30) days' notice of any cancellation or material reduction in coverage.

13.2 Audit Rights

In addition to the audit rights in Section 6.5, Client may, at its own expense and upon reasonable notice, audit Vendor's compliance with this Agreement generally, including financial records relevant to time-and-materials or Change Order billing, security practices, and personnel records relevant to Key Personnel commitments under Section 11.1, no more than twice per twelve-month period absent cause, in which case frequency shall not be limited.

14. General Provisions

14.1 Independent Contractor

Vendor is an independent contractor. Nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship.

14.2 Subcontracting

Vendor may not engage any subcontractor to perform any portion of the Services without Client's prior written consent, which Client may withhold in its sole discretion. Vendor remains fully responsible for any approved subcontractor's performance and compliance with this Agreement, including the obligations in Sections 5, 6, and 11.

14.3 Assignment

Client may assign this Agreement without consent, including to any affiliate or in connection with a merger, acquisition, financing, or sale of assets. Vendor may not assign this Agreement, in whole or in part, without Client's prior written consent, which Client may withhold in its sole discretion. Any purported assignment by Vendor in violation of this Section 14.3 shall be void.

14.4 Force Majeure

Neither Party shall be liable for delay in performance, other than payment obligations, caused by circumstances beyond its reasonable control, provided the affected Party gives prompt notice and uses commercially reasonable efforts to mitigate. Vendor's obligations under Section 2.4 (Performance Guarantee) shall not be excused by force majeure except where the event directly prevents access to Client's training data or systems for a continuous period exceeding fifteen (15) days.

14.5 Notices

All notices shall be in writing, delivered by email with confirmation of receipt and by courier to the addresses in the signature block, and deemed given upon confirmed receipt.

14.6 Governing Law and Jurisdiction

This Agreement is governed by the laws of the State of Delaware, without regard to conflict of laws principles. The state and federal courts located in Delaware shall have exclusive jurisdiction over any dispute, and each Party consents to personal jurisdiction there. Client may, at its election, seek injunctive relief in any court of competent jurisdiction where Vendor or its assets are located.

14.7 Dispute Resolution

The Parties shall attempt to resolve any dispute through good-faith negotiation between senior representatives within fifteen (15) days of written request. If unresolved, either Party may pursue any remedy at law or equity. Client may seek injunctive relief at any time, without prior negotiation, to prevent irreparable harm, including for actual or threatened breach of Sections 5, 6, or 11.

14.8 Entire Agreement; Precedence

This Agreement, its Exhibits, and any SOWs and Change Orders constitute the entire agreement and supersede all prior agreements and understandings. In the event of conflict, the order of precedence is: (i) a Change Order; (ii) the applicable SOW; (iii) the body of this Agreement; (iv) any Exhibit.

14.9 Amendment and Waiver

No amendment is effective unless in writing signed by both Parties. No waiver is effective unless in writing. Client's failure to enforce any provision shall not constitute a waiver of Client's right to enforce that or any other provision at a later time.

14.10 Severability

If any provision is held invalid or unenforceable, it shall be modified to the minimum extent necessary to be enforceable, or severed, with the remaining provisions continuing in full force.

14.11 Counterparts

This Agreement may be executed in counterparts, including by electronic signature, each deemed an original.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the dates set out below.

OrionPay Financial Technologies, Inc.**Ruth**_____
Signature_____
Signature_____
Name / Title_____
Name / Title_____
Date_____
Date_____
Address for Notices_____
Address for Notices

Exhibit A – Initial Statement of Work

A.1 Project Overview

This Statement of Work No. 1 (the “**Initial SOW**”) is entered into pursuant to, and incorporates by reference, the Master Software Development Services Agreement between OrionPay Financial Technologies, Inc. (“**Client**”) and Ruth (“**Vendor**”) dated July 2026. Capitalized terms have the meanings given in the Agreement.

A.2 Functional Scope

Merchant Dashboard & Onboarding: merchant registration and KYC-adjacent data collection workflow (integrating with Client’s existing KYC/KYB provider); merchant dashboard for transaction history, settlement status, and payout configuration; role-based admin access for Client operations staff.

Payments Integration Layer: integration with Client’s existing payment processing infrastructure and card network connections as specified by Client at kickoff; transaction routing, authorization, and settlement orchestration; reconciliation reporting between processor settlement files and Client’s ledger.

Fraud-Scoring Model: a transaction-level fraud risk score generated in real time at authorization, trained and fine-tuned on Client’s historical transaction data; a model-serving API integrated into the authorization flow with a target inference latency of under 150ms at the 95th percentile; a feedback loop enabling Client fraud analysts to label outcomes for ongoing model evaluation; full model documentation including feature definitions, training data lineage, and evaluation methodology, sufficient for Client’s internal model risk management review.

A.3 Out of Scope

The following are out of scope absent a Change Order: card network certification and PCI DSS assessment (Client will engage its existing QSA separately, with Vendor providing reasonable supporting documentation at no cost); development of the underlying KYC/KYB verification logic (Vendor will integrate with Client’s existing third-party provider); and multi-currency settlement beyond USD.

A.4 Milestone Schedule

Anticipated duration: six (6) months from the Effective Date, subject to Section 2.6 of the Agreement.

#	Milestone	Timing	Fee	Review
1	Kickoff, discovery, finalized specification, security & data handling plan approved	Weeks 1–3	\$34,000	20 bus. days
2	Architecture approval; fraud model feature set and validation dataset approved	Weeks 4–6	\$34,000	20 bus. days
3	Merchant dashboard & onboarding – staging	Weeks 6–12	\$68,000	20 bus. days
4	Payments integration layer – staging	Weeks 10–16	\$68,000	20 bus. days
5	Fraud-scoring model – Performance Guarantee met on validation set	Weeks 14–20	\$68,000	20 bus. days
6	Integrated testing, security review support, production go-live, Final Acceptance	Weeks 20–24	\$68,000	20 bus. days
Total			\$340,000	

A.5 Performance Guarantee – Validation Methodology

The Performance Guarantee under Section 2.4 of the Agreement shall be measured against a held-out validation dataset comprising no less than six (6) months of Client’s historical transaction data, with fraud labels provided by Client’s existing fraud operations team. The validation methodology, class balance, and evaluation window shall be finalized and documented in writing by the Parties at Milestone 2 and shall not be unilaterally altered by Vendor thereafter.

A.6 Project Team

Vendor shall assign, at minimum: one (1) Project Manager (Key Personnel), one (1) Technical Lead / Solutions Architect (Key Personnel), one (1) Fraud/ML Lead (Key Personnel), backend engineers, front-end engineers, ML/data engineers, one (1) QA engineer, and one (1) security-focused engineer given the payments context.

A.7 Data Handling

All Client transaction data shall be processed exclusively within the environment(s) approved in writing by Client under Section 6.3 of the Agreement. Vendor personnel accessing such data shall be identified by name to Client prior to access being granted, and Client may require removal of any individual from data access at its discretion.

A.8 Assumptions

This Initial SOW assumes: (i) Client will designate a Project Lead reasonably available throughout the Project; (ii) Client will provide historical transaction data for model training and validation within two (2) weeks following Milestone 2 sign-off, in a format specified by Vendor and agreed by Client; (iii) Client will provide access to its existing payment processing and KYC/KYB provider APIs and sandbox environments; and (iv) Client will provide feedback on deliverables within the Review Periods set out in Section A.4.